

Line 8

Case Name: *Remedios Domondon, et al. v. Fely P. Mabutas, et al.*

Case No.: 18CV329214

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Remedios Domondon (“Plaintiff”) moves the Court to vacate the trial date currently set for August 17, 2026 on the ground that jurisdiction remains with the appellate court because the appellate court has not yet issued its remittitur. Pl. Order to Show Cause (“OSC”) Application (the “Motion”) at 3:1-25 (filed: July 29, 2026)

The Motion came on for an OSC hearing on August 7, 2026, at 9:00 AM in Department 16, specifically on why the trial date currently set for August 17, 2026 should not be vacated on the ground that the appellate court retains jurisdiction over the matters to be tried because no remitter has been issued yet. *Id.* at 4:3-8. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

In its unpublished opinion in this action filed on May 14, 2026, the Sixth Appellate District held in its concluding paragraph: “The judgment of dismissal is reversed and the matter is remanded for an immediate trial setting. Given the age of this case, the trial court is directed *to set a trial date that is within 180 days of the issuance of the remittitur*, unless the parties stipulate to a later date under Code of Civil Procedure section 583.330.” Order at p. 20 (May 14, 2026, Sixth Appellate District, H052936, on appeal from Santa Clara County Super. Ct. No. 18CV329214) (emphasis added). Underscoring the urgency of its directive, the Sixth Appellate District in the opening paragraph of this same opinion wrote: “We reverse and remand *for an immediate trial.*” *Id.* at p. 1 (emphasis added).

In light of this appellate opinion’s directive “for an immediate trial setting,” the undersigned Judge swiftly after receiving this appellate opinion set a Trial Setting Conference on June 10, 2026, at which counsel for all parties appeared. And at that Trial Setting Conference, having in mind the appellate court’s directive “for an immediate trial,” the Undersigned Judge set trial in this case for August 17, 2026.

When the Undersigned Judge set the August 17, 2026 trial date, he assumed (in light of the urgency of the directive “for an immediate trial” in the appellate decision) that the Sixth Appellate District would issue the remittitur imminently, such that there would be no jurisdictional barrier to the trial court proceeding with this trial on August 17, 2026.

But as Plaintiffs do accurately point out in their Motion to vacate the August 17, 2026, as of today the Sixth Appellate Division has not issued the remittitur. The Undersigned Judge has personally reviewed the online appellate case docket today in

HO52936 and sees that no remittitur has been issued yet. And Plaintiffs also accurately point out that until the Sixth Appellate Division issues its remittitur, the trial court is without jurisdiction to hear the trial of this matter.

Moreover, Defendants Art Perez, dba AP Accounting, Fely P. Mabutas, and Ferdinand Absalon have all filed Notices of Non-Opposition to this Motion to Vacate the August 17, 2026 trial, which this Court views as these Defendants conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Also, the Undersigned Judge sees in reviewing today the “Scheduled Actions” tab on the online appellate case docket in HO52936 that there the Sixth Appellate District states that the “Due Date” for “Remittitur [to be] issued” is “August 13, 2026.” So, in light of that expected remittitur-issuance date of August 13, 2026, it is reasonable for this Court now to set another Trial Setting Conference (“TSC”) later this month on August 26, 2026, where and when this Court can and will set a new trial date within 180 days of the date the remittitur is issued.

Accordingly, Plaintiff’s Motion to Vacate the August 17, 2027 trial is **GRANTED**. Specifically, the Court **ORDERS**:

1. The Mandatory Settlement Conference set for August 12, 2026 at 9:04 AM in Department 16 is **VACATED**.
2. The Trial Assignment Hearing set for August 13, 2026 at 1:31 PM in Department 18 is **VACATED**.
3. The Trial set for August 17, 2026 at 8:45 AM in Department 18 is **VACATED**.
4. The Court **SETS** a new TSC for August 26, 2026 at 11:00 AM in Department 16. Before the August 26, 2026 TSC, counsel for all parties will meet and confer to see if they can agree on a trial date *within* 180 days of the date the remittitur is issued. If they do agree, the Court is likely to set trial for that agreed-upon date; if they don’t agree, the Court will pick a trial date for them.
5. All parties, all counsel, and all witnesses (fact and expert) are put on **NOTICE** that at the August 26, 2026 TSC this Court will set this case for trial within 180 days of the date the remittitur is issued—as directed by May 14, 2026 opinion of the Sixth Appellate District. There will be no continuance or delay of this trial beyond that point.

SO ORDERED.

Date: August 7, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Line 10

Line 11

Line 12

Line 13

Line 14

Line 15